

KAVANAUGH, J., concurring in part

and far more difficult than the Court’s cases sometimes seem to assume. Nonetheless, the Court has ordinarily left the updating or correction of erroneous statutory precedents to the legislative process. See, e.g., *Kimble v. Marvel Entertainment, LLC*, 576 U. S. 446, 456–457 (2015); *Patterson v. McLean Credit Union*, 491 U. S. 164, 172–173 (1989); *Flood v. Kuhn*, 407 U. S. 258, 283–284 (1972). The principle that “it is more important that the applicable rule of law be settled than that it be settled right” is “commonly true even where the error is a matter of serious concern, *provided correction can be had by legislation.*” *Burnet v. Coronado Oil & Gas Co.*, 285 U. S. 393, 406 (1932) (Brandeis, J., dissenting) (emphasis added).²

In constitutional cases, by contrast, the Court has repeatedly said—and says again today—that the doctrine of *stare decisis* is not as “inflexible.” *Burnet*, 285 U. S., at 406 (Brandeis, J., dissenting); see also *ante*, at 105–106; *Payne*, 501 U. S., at 828; *Scott*, 437 U. S., at 101. The reason is straightforward: As Justice O’Connor once wrote for the Court, *stare decisis* is not as strict “when we interpret the Constitution because our interpretation can be altered only by constitutional amendment or by overruling our prior decisions.” *Agostini*, 521 U. S., at 235. The Court therefore “must balance the importance of having constitutional questions *decided* against the importance of having them *decided right.*” *Citizens United*, 558 U. S., at 378 (ROBERTS, C. J., concurring). It follows “that in the unusual circumstance when fidelity to any particular precedent does more to damage this constitutional ideal than to advance it, we must be more willing to depart from that precedent.” *Ibid.* In his canonical

²The Court’s precedents applying common-law statutes and pronouncing the Court’s own interpretive methods and principles typically do not fall within that category of stringent statutory *stare decisis*. See *Leegin Creative Leather Products, Inc. v. PSKS, Inc.*, 551 U. S. 877, 899–907 (2007); *Kisor v. Wilkie*, 588 U. S. 558, 623–626 (2019) (GORSUCH, J., concurring in judgment).